

Raj Bahadur v. State of U.P. (DVVNL)

High Court of Judicature at Allahabad · Division Bench · 13 January 2021 · Writ-C No. 27006 of 2020 · Writ-C No. 27006 of 2020 · **Writ disposed of; petitioner relegated to a clause 6.14 instalment application before the Executive Engineer, to be decided as per law after adjusting previous deposits.**

HEADNOTE

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 is a self-contained provision for instalment of electricity arrears. The High Court will not itself fix instalments; the consumer must apply to the competent authority. If an application is moved within a week, the Executive Engineer shall accord relief as per law after adjusting previous deposits. Writ disposed of.

FACTUAL SUMMARY

Raj Bahadur, running a flour mill, sought quashing of a DVVNL bill for 29 June 2020 to 30 July 2020, deduction of Rs 91,000 with a corrected bill for 31 July 2019 to 29 August 2019, and reinstallation of his disconnected mill meter after deposit of arrears. After the Court indicated it was not inclined to grant those prayers, counsel submitted that the bill would be fixed by the authorities and the petitioner would pay the outstanding amount in easy instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for arrears

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 is a self-contained provision for extending instalment facility. Once that provision exists, the consumer's remedy is to approach the concerned authority rather than have the High Court fix instalments. An application moved within a week is to be decided by the Executive Engineer as per law after adjusting previous deposits. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court treated clause 6.14 as the self-contained mechanism for instalment of arrears and declined to fix instalments in writ jurisdiction, relegating the petitioner to an application before the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 29.6.2020–30.07.2020 BILL AND THE CLAIM TO DEDUCT RS 91,000

The Court indicated a negative mind on the certiorari and mandamus prayers but did not adjudicate the billing dispute. ¶ 1

NOT DECIDED — RESTORATION OF THE FLOUR MILL CONNECTION ON THE MERITS

¶ 1